

Court No. - 1

Case :- WRIT - C No. - 2256 of 2020

Petitioner :- Sarfaraj

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Deena Nath

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

As prayed, put up this matter on 4th February, 2020 as fresh before appropriate Bench.

Order Date :- 23.1.2020

Atmesh

(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 37

Case :- WRIT - C No. - 2256 of 2020

Petitioner :- Sarfaraj

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Deena Nath

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Abhinava Upadhya,J.

Hon'ble Shamim Ahmed,J.

Put up on Friday i.e. on 7.2.2020 as fresh to enable Shri Rajesh Yadav to seek instruction in the matter.

Order Date :- 4.2.2020

Sunil Kr. Gupta

(Shamim Ahmed, J.) (Abhinava Upadhya, J.)

Court No. - 32

Case :- WRIT - C No. - 2256 of 2020

Petitioner :- Sarfaraj
Respondent :- State Of U.P. And 3 Others
Counsel for Petitioner :- Deena Nath
Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

"(A) issue a writ order or direction in the nature of certiorari quashing the demand notice dated 14.9.2018(Annexure No.3 to the writ petition) issued by Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Vidyut Vityran Khand 1st, District Bulandshahar."

Heard the learned counsel for the petitioner and Mr. Rajesh Yadav, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any

opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 4.3.2020 at 11.00 A.M. before the Respondent No.4, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.4, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of eight weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned

demand notice shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 7.2.2020

MLK